ARIZONA
DEPARTMENT OF
HEALTH SERVICES

April 1, 2025

Kind Meds Inc.
ATTN: Jason Chacon
2152 S. Vineyard ST. Ste 120
Mesa, AZ 85210

RE: INSP-0099869

Dear Mr. Chacon:

The purpose of this letter is to inform you that during a recent compliance inspection (INSP-0099869) conducted on March 3, 2025, by the Arizona Department of Health Services, the Department cited violations in one or more areas that are repeat violations of the same statutes or rules cited previously during routine compliance inspections.

The Statement of Deficiencies ("SOD"), sent on March 11, 2025, describes the violations cited. Because the case has been referred to the Enforcement Team, and the Informal Dispute Resolution ("IDR") period has passed or the IDR has been reviewed and the citations were upheld, the Department is requesting $2,000.00 in Civil Money Penalties ("CMP"), along with a written plan of correction for the violations.

Please review, sign, and return the enclosed Civil Money Penalty ("CMP") agreement forms and return to the Department by April 7, 2025.

Once the forms are completed, returned, and signed by the Department, the Department will open an Enforcement and an Invoice in the Facility Licensing Portal. Both the CMP and Plan of Corrections must be submitted through the portal within thirty (30) calendar days of the Effective Date. To submit a Plan of Correction, please see pages 105-107 of the PO/BM Handbook.

If you have any questions, please call our office at (602) 364-0857.

Sincerely,

Stacy Marchelli
Compliance Manager
Bureau of Marijuana Licensing
Enclosure

ARIZONA DEPARTMENT OF HEALTH SERVICES
PUBLIC HEALTH LICENSING SERVICES
BUREAU OF MARIJUANA LICENSING

ENFORCEMENT MEETING NOTIFICATION OF RIGHTS

Facility Name:	License#	PO/BM:
Kind Meds Inc.	00000088ESUZ76069650	Jason Chacon

Please initial after each section.

1. I understand that I have the right to reject the proposed resolution and may refuse to sign this Agreement. _____(initials)
2. This Agreement has been reviewed and approved by the Assistant Director. If this Agreement is changed, it will be returned to the Assistant Director for approval. _____(initials)
3. I understand that if I do not enter into an agreement at this time, the Program will refer this matter to Public Health Licensing Services ("Licensing") Enforcement Team and a legal order may be prepared and sent to me. _____(initials)
4. I understand that I have due process rights and can request a hearing before the Office of Administrative Hearings regarding any legal order issued by the Department's Director. _____(initials)

I hereby acknowledge that I have discussed the above statements with the Department and understand my rights with regard thereto.

Licensee: _____ Date: 5-13-2025
(Licensee's signature)

ENFORCEMENT MEETING AGREEMENT FORM

Facility Name:	License#	PO/BM:
Kind Meds Inc.	00000088ESUZ76069650	Jason Chacon

Department concern noted: The department is requesting $2,000.00 in Civil Money Penalties (CMP). Along with a written plan of correction for the violations.

Agreement:

(initials)_____ Licensee agrees to pay civil money penalties in the amount of $2000.00.

(initials)_____ Licensee understands to not be in substantial compliance could result in further enforcement action up to and including denial of the renewal application.

	PLEASE PRINT NAME	SIGNATURE	DATE
Licensee:	Jason Chacon		5-13-2025
Bureau Chief:	Kimberly Crawford		
Assistant Director:	Tom Salow		
Compliance Manager:	Stacy Marchelli		

ARIZONA DEPARTMENT OF HEALTH SERVICES
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Jason Chacon
2152 South Vineyard St, Ste 120
Mesa, AZ 85210
License # 00000088ESUZ76069650

CIVIL PENALTIES

Statute/Rule	Violations	Penalty Assessment	Penalty Amount
R9-18-312(I)(1)(c)	3/3/2025 12/27/2023 1/9/2023	Security	$2,000.00

Total			$2,000.00

Payments are to be made in the Facility Licensing Portal and shall be made within thirty (30) days from the execution date of the attached Enforcement Agreement unless an alternate payment schedule is arranged. Please review pages 114-118 of the PO/BM Handbook for instructions on how to make payment.

I want to note that the same exact camara set up that Kind Meds, Inc (KM) opened with and AZDHS deemed compliant for over a decade is what is now being called non compliant. I want this to be on record. → Jason Chacon Director.